

UMF #57.) Plaintiff presents as undisputed fact that MONTOYA sent BRIAN photographs of the stencil and tattoo in progress when creating Plaintiff's tattoo, suggesting control exercised over the artistic process. (P UMF #21.) It is also meaningful that MONTOYA believed he was PHILTHY CLEAN's employee because, per *Borello*, the beliefs of the parties as to an employer-employee relationship are relevant secondary factors. (P UMF #55.) Plaintiff also presents as undisputed fact that MONTOYA did not work at any other parlors between 2019 and 2025 and would sometimes open and close the shop, which is evidence of work done as part of Moving Defendants' regular business. (P UMF #60.) Lastly, and on that point, the secondary *Borello* factor of whether the work performed is part of the principal's regular business suggests that MONTOYA was an employee because he was a tattoo artist working inside of a tattoo parlor.

Moving Defendants' waiver argument fails because they have no competent evidence of a signed waiver form. The court observes that the document presented does not contain a release of claims related to anything except the novel coronavirus anyway.

Conclusion. Moving Defendants' motion for summary judgment is denied.

WALKER v. SOLANO COUNTY OFFICE OF EDUC.
Case No. CU24-05338

Motion to Quash Service of Summons

TENTATIVE RULING:

The motion to quash the summons is granted.

Until statutory requirements for proper service of process are satisfied, the court lacks personal jurisdiction over a defendant. (*Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808; *Honda Motor Co. v. Superior Court* (1992) 10 Cal.App.4th 1043, 1048.) "A summons may be served on a public entity by delivering a copy of the summons and of the complaint to the clerk, secretary, president, presiding officer, or other head of its governing body." (Code Civ. Proc. § 416.50(a).) The summons and complaint was served, by personal service, on "Collin Bublavi, HR". (Proof of Service (9/9/24).) Bublavi was not "the clerk, secretary, president, presiding officer, or other head of SCOE's governing body." (Decl. of Garcia, ¶ 3.)

GERALD QUINT v. EVELYN BAYON, et al.
Case No. CU24-08326

Motion to Compel

TENTATIVE RULING:

Plaintiff's Motion to Compel is DENIED.